Employer Nomination Scheme visa (subclass 186)

Direct Entry stream

This visa lets skilled workers nominated by an employer live and work in Australia permanently.

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For Applicants For Sponsors

Eligibility

Have an eligible occupation

Your occupation must be on the Core Skills Occupation List (CSOL) *(/visas/working-in-australia/skill-occupation-list)*.

Have relevant work experience

Unless exempt, most applicants need to have at least 3 years relevant work experience in their occupation. Applicants who are exempt from the skills assessment requirement are also exempt from the work experience requirement.

Licensing, registration or membership

You must be licensed, registered or a member of a professional body if it is mandatory in the state or territory you intend to work in.

Have a positive skills assessment

Most applicants need to have a skills assessment that shows they have the skills to work in the nominated position. Learn more about skills assessments *(/visas/working-in-australia/skills-assessment)*.

Exemption

You are exempt from having a skills assessment if you:

Ask a question

- have been nominated as an academic (university lecturer or faculty head at Academic Level A, B, C, D or E) by a university in Australia, or
- have been nominated as a scientist, researcher or technical specialist by an Australian government scientific agency, or
- currently hold a Special Category (subclass 444) *(/visas/getting-a-visa/visa-listing/special-category-visa-subclass-444)* or New Zealand Citizen Family Relationship (subclass 461) *(/visas/getting-a-visa/visa-listing/new-zealand-citizen-family-relationship-temporary-461)* visa and have worked for the employer who nominated you, in the nominated position, for at least 2 years in the last 3 years prior to the date you applied for the visa

Be nominated

You must be nominated by an Australian employer whose business is actively and lawfully operating.

You must apply for the visa within 6 months of the nomination being approved.

We can't grant you a visa if:

- we are aware of adverse information about your nominator or any person associated with them, unless it is reasonable to disregard this information, or
- the nomination is withdrawn, or
- the position is no longer available

You might be eligible for a refund of the visa application charge depending on the circumstances.

Be this age

Usually, you must be under 45 years of age when you apply.

You are exempt from this criteria if any of the following applies to you:

- you are nominated as an academic (university lecturer or faculty head at Academic Level B, C D or E) by a university in Australia
- you are nominated as a scientist, researcher or technical (scientific) specialist at ANZSCO skill level 1 or 2 by a Federal, State or Territory government science agency, or an Australian university
- you currently hold a Special Category (subclass 444) *(/visas/getting-a-visa/visa-listing/special-category-visa-subclass-444)* or New Zealand citizen's family member (subclass 461) *(/visas/getting-a-visa/visa-listing/new-zealand-citizen-family-relationship-temporary-461)* visa and have worked for the employer who nominated you, in the nominated position, for at least 2 years in the last 3 years immediately before you apply. The 2 years excludes periods of unpaid leave.

Meet our health requirement

You and any family members who apply for the visa with you must meet our health requirement *(/help-support/meeting-our-requirements/health)*. We might ask for health information about family not coming to Australia with you.

Meet our character requirement

You and family members aged 16 years and over who apply for the visa with you must meet our character requirement *(/help-support/meeting-our-requirements/character)*. We might ask for character information about family not coming to Australia with you.

Sign the Australian values statement

If you are 18 years of age or older, you must:

- have read, or had explained to you, the Life in Australia booklet *(/help-support/meeting-our-requirements/australian-values)* and
- sign an Australian Values Statement *(/help-support/meeting-our-requirements/australian-values)* that confirms you will respect the Australian way of life and obey Australian laws.

Have this level of English language

You must have at least competent English *(/help-support/meeting-our-requirements/english-language/competent-english)* to be granted this stream of the visa.
Any dependent applicant who was aged at least 18 years on the day you make your application should provide evidence they have at least functional English *(/help-support/meeting-our-requirements/english-language/functional-english)*.
If you can't show that they have functional English, you will need to pay the second instalment of the visa application charge *(/visas/getting-a-visa/visa-listing/employer-nomination-scheme-186/direct-entry-stream?bk=aboutVisa-index-3#About)* when we ask you to.

Have paid back your debt to the Australian government

If you owe the Australian Government money, you must have paid it back or have a formal arrangement to pay it back.

Not have had a visa cancelled or a previous application refused

We will consider your immigration history when we make a decision on your application, which means you might not be eligible for this visa if you have had a visa cancelled or refused.

In some circumstances you may still apply for a permanent visa if you have had a visa cancelled or an application refused see Limitations on applications in Australia *(/form-listing/forms/1026i.pdf)*.

If applying for a visa from outside Australia see Can I go to Australia *(/entering-and-leaving-australia/entering-australia/can-i-go-to-australia/re-entry-ban)*.

If you want immigration assistance, see Who can help with your visa application *(/help-support/who-can-help-with-your-application/overview)*.

Meet all these criteria? Check how to apply in our step by step *(#HowTo)* guide.

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